



Violence and Discrimination Policy

Policy Number: TPO 001 - AC 001

Issue Date: June 14, 2021

Last Review: March 1, 2023

Last Revision: May 1, 2023

Overseer: TBC Senior Leadership Team

Next QA Review: May 1, 2024

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1. Statement

The objective of this policy is to provide information and demonstrate to Toronto Business College (TBC) employees, that they have the right to a work environment free from discrimination, violence and harassment on any of the prohibited grounds in the Ontario Human Rights Code, including race, ancestry, place of origin, color, ethnic origin, citizenship, creed, sex, age, marital status, family status, disability, sexual orientation (and same-sex partnership status) and record of offenses, as these terms are defined and interpreted in and by the Ontario Human Rights Code.

The company is committed to fostering a climate where human rights are respected. We will not tolerate discrimination, violence or harassment in its employment or business dealings.

TBC is aware of its role in addressing any unwanted behaviors early to minimize the potential for workplace harassment to lead to workplace violence. The specific duties with respect to workplace harassment and workplace violence are dictated by the Occupational Health and Safety Act and followed by the College.

2. Scope and Application

This policy addresses discrimination, harassment, and sexual harassment within the company environment, recognizing that such conduct may be offensive, degrading, or threatening, or that it can foster a hostile or unfair environment.

Additionally, it recognizes that employees may be subject to harassment within the company or with whom the company conducts business, including Contractors (e.g. those undertaking construction, provision of services, among others) and visitors. In these circumstances, the company acknowledges its responsibility to support and assist anyone subject to such harassment.

This policy covers incidents that occur both on and off the company's premises, which affect the working environment (for example, discrimination and harassment that occurs on premises, off-premises, at company-related work or social functions, during work or travel on company business, over the phone or computer).

In off-premises situations, there must be the potential for discrimination or harassment to adversely impact the work environment and/or to create a poisoned environment. Incidents occurring outside the company's premises which have no likelihood of impact on the work environment, are to be pursued through the Ontario Human Rights Commission or any other relevant legislation and will not be dealt with under this policy. TBC is responsible for the costs of administering this policy, including processing complaints, and arranging for mediation and investigation services, but not for any legal costs incurred personally by the complainant or respondent.

3. Prevention

TBC is responsible for ensuring an environment free of harassment and discrimination and educating all employees. Every TBC employee is obligated to create and maintain an environment free of harassment and discrimination. All TBC employees are liable for their own discriminatory actions.

Consistent with the Ontario Human Rights Code, employees have the authority to prevent or discourage harassment or discrimination and are considered responsible for failing to exercise their authority to do so. This would apply when the person knew or should have known about the harassment or discrimination and could have stopped it.

4. Definitions and examples

Harassment: one or a series of vexatious comments or conduct related to one or more of the prohibited grounds that is/are known or might be known to be unwelcome, offensive, intimidating, hostile or inappropriate. Examples include gestures, remarks, jokes, taunting, innuendo, verbal assault or hazing, shunning or exclusion related to the prohibited grounds.

Sexual Harassment: one or a series of comments or conduct of a gender-related or sexual nature that is/are known or might reasonably be known to be unwelcome, offensive, intimidating, hostile or inappropriate. Examples include gestures, remarks, jokes, slurs, taunting, innuendo, verbal assault, unwanted physical contact, invitations, leering, the display of sexually offensive material, sexual solicitation or demands; unwanted attention, implied or express promise of reward or benefit in return for sexual Favors or an implied or express threat or act of reprisal if sexual Favors are not given.

Discrimination: action(s) or behavior(s) creating unfavorable, adverse, or differential treatment related to the prohibited grounds. Common examples are refusal to provide goods, services or facilities, exclusion from employment or employment benefits, refusal to work with, teach, or study with someone and/or failure to provide physical access.

Systemic or Constructive Discrimination: policies, practices, procedures, actions, or inaction that appear neutral, but have an adverse impact associated with one of the prohibited grounds.

An example is a hiring criterion that is not deemed genuine and serves to exclude a particular group, or exam schedules that conflict with important religious events.

Negative or Poisoned Environment: a series of comments or a pattern of conduct creating a negative environment (hostile, intimidating or offensive) for individuals or groups related to prohibited grounds.

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The comment or conduct must be of a significant nature or degree and have the effect of "poisoning" the work environment. A complainant does not have to be a direct target to be adversely affected by a negative environment. Examples include exposure to graffiti, signs, cartoons, and remarks.

Violence: includes, but is not limited to, the following actions or behaviors that a reasonable person would perceive to be aggressive, and/or intimidating, and/or harassing, and/or unsafe or which carry an expressed or implied intent to cause harm to a person or property:

- Hitting, shoving, or striking another person or object.
- Throwing objects, regardless of size or target, where a reasonable person would consider the intent to be aggressive or assaultive in nature.
- Threatening of harm to anyone or to their property.
- Unwelcome name -calling, obscene language and other verbally abusive behavior, e.g., hateful graffiti, leering/whistling.
- Threat of or intentional destruction of college property.
- Acts such as obscene gestures, "getting in your face" and fist shaking.
- "Stalking" or the willful, malicious, and repeated following of any member of the college community creating an atmosphere of fear for that individual's personal safety.
- Possessing or using weapons, or any other objects intended to cause injury or to threaten or intimidate.

5. Responsibilities

Toronto Business College, as an employer, shall be responsible for:

- providing a workplace free from violence and harassment.
- providing the required information and resources to control violence and harassment.
- creating an environment that encourages victims of violence and harassment to report all incidents.

Managers/Supervisors are responsible for:

- action as required and necessary to prevent violence and harassment.
- acting immediately on observations, incidents, complaints or allegations of violence and harassment.
- encouraging employees to report all incidents of violence and harassment.
- assisting as required in any investigation into incidents of violence and harassment.
- ensuring that employees complete training as required on college policies and procedures directed at preventing violence and harassment.

6. Sexual Harassment

The Occupational Health and Safety Act defines workplace sexual harassment as:

- engaging in a course of vexatious comment or conduct against a worker, in a workplace because of sex, sexual orientation, gender identity or gender expression where the course of comment or conduct is known or ought to be known to be unwelcome, or,
- making a sexual solicitation or advance where the person making it can confer, grant, or deny a benefit or advancement to the worker and the person knows or ought reasonably to know the solicitation or advance is unwelcome.

This definition of workplace sexual harassment reflects the prohibitions on sexual harassment and sexual solicitation found in Ontario's Human Rights Code. The comments or conduct typically happen more than once, although a single unwelcome solicitation or advance from a manager, supervisor, or another person who has the power to reward or punish the worker may constitute workplace sexual harassment. Multiple events can occur over a brief period or over a longer period.

Workplace sexual harassment can involve unwelcome words or actions associated with sex, sexual orientation or gender that are known or should be known to be offensive, embarrassing, humiliating, or demeaning to a worker or group of workers, in a workplace. It can also include behavior that intimidates or isolates individual(s). Workplace sexual harassment may include:

- asking questions, talking, or writing about sexual activities.
- rough or vulgar humor or language related to sexuality, sexual orientation, or gender.
- displaying or circulating pornography, sexual images, or offensive sexual jokes in print or electronic form.
- leering or inappropriate staring.
- invading personal space.
- unnecessary physical contact, including inappropriate touching.
- demanding hugs, dates, or sexual favors.
- making gender-related comments about someone's physical characteristics, mannerisms, or conformity to sex-role stereotypes.
- verbally abusing, threatening, or taunting someone based on gender or sexual orientation; or
- threatening to penalize or otherwise punish a worker if they refuse a sexual advance.

The above information is in accordance with the Ministry of Labor's "Workplace Violence and Harassment" Guide.

7. Investigating Incidents and Complaints

An appropriate investigation into a workplace harassment incident or complaint would be timely, fair, and address all relevant issues. TBC, as the employer, will treat an incident or complaint seriously, to act upon it promptly, and to allow time and sufficient resources to investigate and deal with it.

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Some matters will not require a complicated investigation; others, such as those involving allegations of sexual harassment by a co-worker over several years, may be more complex and need a more rigorous investigation.

Stages in a more complex investigation could include:

- A review of details of the incident or complaint, including any relevant documents.
- An interview or interviews with the employee alleging harassment.
- An interview or interviews with the alleged harasser if he or she works at TBC.
- An interview or interviews with the alleged harasser if he or she is not a TBC employee and if it is possible and appropriate.
- Separate interviews with relevant witnesses.
- Examination of relevant documents or other evidence that pertains to the investigation (such as emails, notes, photographs, or videos).
- A decision about whether a complaint or incident is workplace harassment; and
- Preparation of a report summarizing the incident or complaint, the steps taken during the investigation, the evidence gathered, and findings (such as whether workplace harassment occurred, did not occur, or that it was not possible to determine).

During the investigation, the employee who complained about workplace harassment should be kept informed about the status of the investigation, as should the alleged harasser if he or she also works for TBC. Documentation of the investigation is also important. Where possible, it should include names, dates, the complaint, details of the incident(s), notes from interviews and meetings, associated documents or evidence, any investigation report, and any actions taken as a result of the incident or complaint and investigation.

If the alleged harasser is not a TBC employee or, if there are witnesses who are not the company's employees, the individual conducting the investigation should make reasonable efforts to interview these people as part of the investigation if their identities are known and if it is appropriate in the circumstances.

8. Results of an Investigation

TBC will ensure that the employee who was allegedly harassed is informed in writing about the results of a workplace harassment investigation and of any corrective action that has been or that will be taken as a result of the investigation. This information must also be provided to an alleged harasser who works for the company. The purpose of this provision is to ensure that these specific employees are aware of what has happened as a result of the incident or complaint and the investigation into that incident or complaint.

The results will be presented in a summary document, outlining the findings of the investigation. If the investigation concluded that workplace harassment occurred, information about corrective actions taken will be included.

9. Statement of General Principles

As an important part of this policy, the complaint procedures provide an internal mechanism for receiving complaints of discrimination or harassment and setting out a process by which the company will deal with a complaint received.

Timelines: A complaint, either formal or informal, must be filed within six (6) months of the incident except in extenuating circumstances that would explain the delay. Should a late complaint be filed, the company will assess the extenuating circumstances against any prejudice to a respondent and/or to the company, to determine if the matter should proceed through the complaint process.

Procedural Fairness: No action will be taken against a person or group without their knowledge, where there is an alleged breach of the Code. It is intended that they be given reasonable notice, with full details of the alleged breach and an opportunity to answer the allegations made.

Confidentiality: TBC acknowledges that it may be difficult to come forward with a complaint of discrimination or harassment and recognize a complainant's interest in keeping the matter confidential. To protect the interests of the complainant, the respondent and any others who may be involved, the company will use its best efforts to maintain confidentiality to the extent practicable and appropriate under the circumstances. Given the very nature of these matters, the procedure to be followed and the necessity to often include individuals in the process, other than the complainant and the respondent, TBC cannot guarantee confidentiality.

Safety and Security Issues: The company has the right to take actions or direct procedures which diverge from sections of this policy when the safety of the individual and/or company's employees is at risk.

Parallel Processes: It is recognized that complaints may be pursued under the Ontario Human Rights Code directly with the Ontario Human Rights Commission or by way of a grievance procedure outlined under their collective agreement.

Protection from Reprisals, Retaliation or Threats: It is contrary to this policy for anyone to retaliate, make reprisals or threaten to retaliate or reprise against a complainant or other individual for: (a) having pursued rights under this Policy or the Ontario Human Rights Code (b) having participated or co-operated in an investigation under this Policy or the Ontario Human Rights Code; (c) having been associated with someone who has pursued rights under this Policy or the Ontario Human Rights Code. Anyone engaged in such conduct may be subject to sanctions and discipline.

10. Reference

Ministry of Labor. (2016). Workplace Violence and Harassment: Understanding. Retrieved from [Health and Safety Guidelines](#).

Associated Policies

- TPO 001 - AC 002 - Faculty Recruitment and Selection
- TPO 001 - AC 003 - Faculty Attendance, Absenteeism, and Punctuality Policy
- TPO 001 - AC 004 - Course Content Revision
- TPO 001 - AC 005 – Academic Advising

Associated Procedures

- TPR 001 - AC 001 – Scheduling
 - TPR 001 - AC 002 - Academic Appeal Procedure
 - TPR 001 - AC 003 - Exam Rules of Engagement
 - TPR 001 - AC 004 - Standards of Teaching Practice
 - TPR 001 - AC 005 - AIP Project Advisors Scheduling
 - TPR 001 - AC 006 - Academic Intervention Procedure
 - TPR 001 - AC 007 - Breach of Academic Integrity
 - TPR 001 - AC 008 - Course Retake
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